DATED 2025

VERDANT ENERGY SYSTEMS LIMITED
and
HARBROOK DATA CENTRES PLC

BATTERY ENERGY STORAGE SYSTEM SUPPLY AND LONG-TERM SERVICE AGREEMENT

relating to the Thameside and Caldermoor sites

Whitfield Carter LLP
22 Bishopsgate, London EC2N 4BQ

THIS AGREEMENT is made on 2025

BETWEEN:

1. Verdant Energy Systems Limited (registered in England and Wales with company number 09731442) whose registered office is at Verdant House, Kingsmead Business Park, Reading RG1 8LS ("the Supplier"); and

2. Harbrook Data Centres plc (registered in England and Wales with company number 07742118) whose registered office is at 40 Aldersgate Street, London EC1A 4HD ("the Customer"),

each a "Party" and together the "Parties".

BACKGROUND

(a) The Customer operates data-centre campuses at Thameside, Slough and Caldermoor, Warrington and wishes to procure a battery energy storage system to provide on-site resilience, peak-shaving, grid-balancing services and back-up capability.

(b) The Supplier designs, manufactures and supplies grid-scale battery energy storage systems and licenses the VerdantOS energy-management platform.

(c) The Supplier has agreed to design, supply, install, test and commission the System and to provide the Services, and to grant a licence of VerdantOS, on the terms of this Agreement.

1. Definitions and interpretation

1.1 In this Agreement, unless the context otherwise requires, the following definitions apply:

"Availability" means, for any period, the proportion of the Guaranteed Capacity that is available for charging and discharging, calculated in accordance with Schedule 3 (Performance Guarantees);

"Business Day" means a day other than a Saturday, Sunday or public holiday in England when banks in London are open for business;

"Commissioning Tests" means the tests to be carried out in accordance with Schedule 2 (Commissioning and Take-Over) to demonstrate that the System meets the Performance Guarantees;

"Contract Price" means the aggregate sum of £48,600,000 (excluding VAT) payable by the Customer to the Supplier as set out in clause 5 and Schedule 4 (Charges and Payment Schedule);

"Contract Year" means each period of twelve months during the LTSA Term, the first commencing on the Take-Over Date;

"Guaranteed Availability" means 97.5% per Contract Year;

"Guaranteed Capacity" means 60 MW of power and 120 MWh of usable energy at the Take-Over Date, as apportioned between the Sites in Schedule 1;

"Guaranteed Round-Trip Efficiency" or "Guaranteed RTE" means 87% measured at the point of connection at the Take-Over Date in accordance with Schedule 3;

"LTSA" means the long-term service arrangements set out in clause 8 and Schedule 5 (Long-Term Service Agreement);

"LTSA Term" means the period of ten (10) Contract Years commencing on the Take-Over Date;

"Performance Guarantees" means the guarantees set out in clause 7 and Schedule 3;

"Sites" means the Thameside site and the Caldermoor site described in Schedule 1, and "Site" means either of them;

"Software" or "VerdantOS" means the Supplier's energy-management platform licensed under clause 9 and Schedule 6;

"System" means the battery energy storage system to be supplied, installed and commissioned under this Agreement, as described in Schedule 1 (Technical Specification and Scope of Supply);

"Take-Over" means acceptance of the System (or a Site) following successful completion of the Commissioning Tests, and "Take-Over Date" means the date of the relevant Take-Over Certificate;

"Works" means the design, manufacture, supply, delivery, installation, testing and commissioning of the System.

1.2 Clause, Schedule and paragraph headings do not affect interpretation. References to clauses and Schedules are to the clauses of and Schedules to this Agreement. The Schedules form part of this Agreement.

1.3 In the event of any conflict between the clauses and the Schedules, the clauses prevail, save that the technical requirements in Schedule 1 prevail over the clauses in respect of the technical description of the System.

2. Supply and installation of the System

2.1 The Supplier shall design, manufacture, supply, deliver, install, test and commission the System in accordance with this Agreement, Schedule 1 (Technical Specification and Scope of Supply) and Good Industry Practice.

2.2 The System comprises a 60 MW / 120 MWh lithium-iron-phosphate battery energy storage system apportioned as 40 MW / 80 MWh at the Thameside Site and 20 MW / 40 MWh at the Caldermoor Site, together with the associated power-conversion, control, protection and auxiliary equipment described in Schedule 1.

2.3 The Supplier shall perform the Works so as to achieve Take-Over of the Thameside Site by 30 September 2026 and Take-Over of the whole System by 30 November 2026 (each a "Target Take-Over Date"), subject to clause 4 (Programme and Delay).

2.4 The Customer shall procure that the Supplier has such access to the Sites, grid-connection agreements, utilities and permissions as are reasonably required to perform the Works, as set out in Schedule 2.

2.5 Title to each item of Plant shall pass to the Customer on the earlier of payment for that item and its incorporation into the System. Risk in the System shall pass to the Customer on Take-Over of the relevant Site.

3. Customer obligations

3.1 The Customer shall: (a) provide safe and timely access to the Sites; (b) obtain and maintain the grid-connection agreements and all planning and regulatory permissions required for the operation of the System; (c) provide accurate site information; and (d) perform the Customer responsibilities set out in Schedule 2.

3.2 If the Customer fails to perform any obligation under clause 3.1 and that failure delays or increases the cost of the Works, the affected dates shall be adjusted and the Supplier shall be entitled to its reasonable additional costs, subject to the Supplier using reasonable endeavours to mitigate.

4. Programme, delay and liquidated damages

4.1 The Supplier shall perform the Works in accordance with the programme in Schedule 2. Time is not of the essence save as expressly stated.

4.2 If Take-Over of the whole System is not achieved by the Target Take-Over Date for the whole System (as extended under clause 4.4), the Supplier shall pay to the Customer delay liquidated damages of £24,000 for each day of delay, up to an aggregate maximum of 10% of the Supply and Installation Price.

4.3 The delay liquidated damages in clause 4.2 are the Customer's sole and exclusive remedy for delay in achieving Take-Over, save in the case of the Supplier's abandonment of the Works.

4.4 The Supplier shall be entitled to a reasonable extension of time and to its reasonable additional costs where a delay is caused by a Customer default, a Change under clause 6, a Force Majeure Event, or a Relief Event described in Schedule 2.

5. Charges and payment

5.1 In consideration of the Works, the Services and the licence of the Software, the Customer shall pay the Contract Price of £48,600,000 (excluding VAT), comprising: (a) the Supply and

Installation Price of £41,200,000; (b) the LTSA Charges of £6,200,000 over the LTSA Term; and (c) the Software Licence Fee of £1,200,000.

5.2 The Contract Price shall be invoiced against the milestones in Schedule 4 (Charges and Payment Schedule). Each invoice is payable within 30 days of receipt of a valid invoice.

5.3 The Customer shall pay a deposit of 10% of the Supply and Installation Price on the date of this Agreement, which shall be set off against the first milestone payments.

5.4 The Customer may retain 5% of each Supply and Installation milestone payment (the "Retention"). One half of the Retention shall be released on Take-Over of the whole System and the balance twelve months thereafter, subject to the making good of any outstanding Defects.

5.5 All sums are exclusive of VAT. Interest on late payment accrues at 3% per annum above the base rate of the Bank of England, accruing daily.

6. Change control

6.1 Either Party may request a change to the Works or the Services by written notice. No change is binding unless agreed in writing in accordance with the change-control procedure in Schedule 7, recording the effect on the Contract Price and the programme.

6.2 The Supplier shall continue to perform its obligations pending agreement of a change, unless the change makes performance impossible.

7. Performance guarantees

7.1 The Supplier guarantees that at the Take-Over Date the System shall achieve the Guaranteed Capacity, the Guaranteed RTE of 87% and the other performance parameters set out in Schedule 3.

7.2 The Supplier guarantees that during each Contract Year the System shall achieve the Guaranteed Availability of 97.5%, measured in accordance with Schedule 3.

7.3 The Supplier guarantees that, provided the System is operated within the operating envelope in Schedule 1, the usable energy of the System shall be no less than 70% of the Guaranteed Capacity (in MWh) at the end of the tenth Contract Year (the "End-of-Term Retention Guarantee").

7.4 If a Performance Guarantee is not met, the Supplier shall at its option and cost rectify the shortfall by augmentation, replacement or reconfiguration, or pay the performance liquidated damages set out in Schedule 3. The performance liquidated damages are the Customer's sole financial remedy for a failure to meet the Performance Guarantees, subject to clause 12.

7.5 The Performance Guarantees do not apply to the extent a shortfall is caused by the Customer's operation of the System outside the operating envelope, the Customer's default, or a failure of the grid connection or Customer-supplied utilities.

8. Long-term service agreement

8.1 The Supplier shall provide the Services set out in Schedule 5 for the LTSA Term, including scheduled and unscheduled maintenance, remote monitoring, availability management, warranty administration, and the augmentation necessary to maintain the End-of-Term Retention Guarantee.

8.2 The LTSA Charges are payable quarterly in advance and are subject to annual indexation in accordance with Schedule 5, the first indexation applying at the start of the second Contract Year.

8.3 The Customer may terminate the LTSA for the Supplier's persistent failure to meet the Guaranteed Availability in accordance with Schedule 5, without prejudice to the Supplier's continuing obligations under the product warranties in clause 10.

9. Software licence

9.1 The Supplier grants to the Customer a non-exclusive, non-transferable licence to use the VerdantOS platform for the operation of the System at the Sites for the LTSA Term, in accordance with Schedule 6 (Software Licence and Data).

9.2 The Software, and all Intellectual Property Rights in it and in the System design, remain the property of the Supplier. Nothing in this Agreement transfers any Intellectual Property Rights to the Customer save the licence granted in clause 9.1.

9.3 The Customer grants the Supplier a licence to use operational data generated by the System for the purpose of providing the Services, improving the Software and degradation modelling, in accordance with the data provisions in Schedule 6.

9.4 The Supplier shall provide software updates and security patches during the LTSA Term and shall maintain the Software in accordance with the service levels in Schedule 6.

10. Warranties and defects

10.1 The Supplier warrants that the System will be free from defects in design, materials and workmanship and will conform to Schedule 1 for a Defects Liability Period of 24 months from Take-Over of the relevant Site.

10.2 During the Defects Liability Period the Supplier shall make good any Defect notified by the Customer at the Supplier's cost. The Defects Liability Period for a repaired or replaced item is extended by the period during which the item was not available for use.

10.3 Each Party warrants that it has full power and authority to enter into and perform this Agreement and that it is not subject to any restriction that would prevent it from doing so.

10.4 Except as expressly set out in this Agreement, all warranties, conditions and terms implied by statute or common law are excluded to the fullest extent permitted by law.

11. Insurance and intellectual-property indemnity

11.1 The Supplier shall maintain, throughout the term of this Agreement, professional indemnity insurance, public and products liability insurance and, during the Works, contractors' all-risks insurance, each with a reputable insurer and at the levels set out in Schedule 8.

11.2 The Supplier shall indemnify the Customer against all losses arising from any claim that the System or the Software infringes the Intellectual Property Rights of a third party, subject to the Customer promptly notifying the Supplier and permitting the Supplier to conduct the defence and settlement of the claim.

12. Limitation of liability

12.1 Nothing in this Agreement limits or excludes either Party's liability for death or personal injury caused by its negligence, for fraud or fraudulent misrepresentation, or for any liability that cannot be limited or excluded by law.

12.2 Subject to clause 12.1 and clause 12.4, neither Party shall be liable to the other, whether in contract, tort (including negligence), breach of statutory duty or otherwise, for any loss of profit, loss of revenue, loss of anticipated savings, loss of business or contracts, or any indirect or consequential loss.

12.3 Subject to clauses 12.1 and 12.4, the total aggregate liability of the Supplier arising under or in connection with this Agreement in any Contract Year shall not exceed 100% of the Charges paid by the Customer to the Supplier in the twelve months preceding the event giving rise to the claim, and in no event shall the Supplier's total aggregate liability under this Agreement exceed the Contract Price.

12.4 The cap in clause 12.3 does not apply to: (a) the Customer's obligation to pay the Charges; (b) liability under the intellectual-property indemnity in clause 11.2; (c) breach of the confidentiality obligations in clause 13; or (d) liability arising from a Party's wilful default or abandonment, in respect of which the aggregate cap shall be 150% of the Contract Price (the "Super-Cap").

12.5 The delay liquidated damages in clause 4.2 and the performance liquidated damages in Schedule 3 count towards, and are not additional to, the caps in this clause 12.

13. Confidentiality

13.1 Each Party shall keep confidential all Confidential Information of the other Party and shall not use it except for the purposes of this Agreement, save as required by law or a regulator.

13.2 This clause 13 survives termination of this Agreement for a period of five years.

14. Termination

14.1 Either Party may terminate this Agreement by notice if the other commits a material breach that is not remediable or, being remediable, is not remedied within 30 days of notice, or on the insolvency of the other Party.

14.2 On termination the Supplier shall be paid for the Works and Services properly performed to the date of termination, and the Parties' accrued rights and the surviving clauses shall continue.

15. Force majeure

15.1 Neither Party is liable for any failure or delay in performing its obligations to the extent caused by a Force Majeure Event, provided it notifies the other and uses reasonable endeavours to mitigate. If a Force Majeure Event continues for more than 180 days, either Party may terminate the affected obligations on notice.

16. General

16.1 Assignment. Neither Party may assign, transfer or sub-contract any of its rights or obligations without the prior written consent of the other, save that the Supplier may sub-contract elements of the Works and Services provided it remains responsible for the acts and omissions of its sub-contractors.

16.2 Entire agreement. This Agreement constitutes the entire agreement between the Parties and supersedes all prior heads of terms, drafts and representations. Each Party acknowledges that it has not relied on any statement not set out in this Agreement.

16.3 Variation. No variation of this Agreement is effective unless in writing and signed by or on behalf of each Party.

16.4 Notices. Notices must be in writing and delivered by hand, pre-paid post or email to the addresses in Schedule 9.

16.5 Third-party rights. A person who is not a Party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.

16.6 Counterparts. This Agreement may be executed in counterparts, each of which is an original and which together constitute one agreement.

16.7 Governing law and jurisdiction. This Agreement and any dispute arising out of or in connection with it are governed by the law of England and Wales, and the Parties submit to the exclusive jurisdiction of the courts of England and Wales.

SCHEDULES

Schedule 1 – Technical Specification and Scope of Supply

Schedule 2 – Commissioning, Take-Over and Programme

Schedule 3 – Performance Guarantees and Liquidated Damages

Schedule 4 – Charges and Payment Schedule

Schedule 5 – Long-Term Service Agreement

Schedule 6 – Software Licence and Data

Schedule 7 – Change Control Procedure

Schedule 8 – Insurance

Schedule 9 – Notices

Schedule 3 – Performance Guarantees and Liquidated Damages (extract)

Parameter	Guarantee
Guaranteed Capacity	60 MW / 120 MWh usable at Take-Over
Guaranteed Round-Trip Efficiency	87% at point of connection at Take-Over
Guaranteed Availability	97.5% per Contract Year
End-of-Term Retention	≥ 70% of usable MWh at end of Year 10
Availability liquidated damages	£450 per 0.1% shortfall below 97.5% per Contract Year, capped at the LTSA Charges for that Contract Year
RTE liquidated damages	£90,000 per 1% shortfall below 87% at Take-Over, capped at 5% of the Supply and Installation Price

EXECUTION

EXECUTED as an agreement on the date first stated above.

SIGNED for and on behalf of VERDANT ENERGY SYSTEMS LIMITED

Signature: _____

Name: Dr Helena Voss

Title: Chief Executive Officer

SIGNED for and on behalf of HARBROOK DATA CENTRES PLC

Signature: _____

Name: Alistair Crane

Title: Chief Operating Officer